

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 22-31

TPG PRESSURE, INC.,
COMPLAINANT

v.

OMNI LOGISTICS, LLC, *et al.*,
RESPONDENTS.

**RESPONDENTS OMNI LOGISTICS, LLC'S AND EPIC
FREIGHT SOLUTIONS LLC'S RESPONSE IN OPPOSITION TO
COMPLAINANT'S MOTION TO MODIFY THE SCHEDULING ORDER**

Respondent Omni Logistics, LLC and Respondent Epic Freight Solutions LLC (collectively, "Respondents"), through counsel, respectfully submit this Response in Opposition to Complainant's Motion to Modify the Scheduling Order (the "Motion")¹.

I. Complainant's Motion Fails to Articulate any Good Cause for the Requested Extension.

Complainant's stated bases for the extension requested in the Motion are inadequate to support an eight-week extension of the expert deadline that has already been extended by eight weeks. Complainant says that an extension is warranted because (1) Respondents' document production is "incomplete"; and (2) unspecified "complications" and "time constraints" have caused a need for the extension. Neither basis amounts to good cause for modifying the Revised Scheduling Order. In order to establish good cause, the moving party must show that, despite

¹ Though Respondents were served with the Motion on Friday, October 6, 2023, Respondents note that the Motion does not appear on the FMC's docket because it was not properly filed, and therefore is not properly before the Presiding Officer. Nevertheless, Respondents submit this opposition in a good faith effort to respond to the Motion.

acting diligently, it will be unable to meet the deadline. *See, e.g., Trustmark Ins. Co. v. Gen. & Cologne Life Re of Am.*, 424 F.3d 542, 553 (7th Cir. 2005). Complainant's Motion fails to make this showing.

A. Respondents' Document Production has been Substantially Complete Since July 14, 2023.

Complainant's suggestion that Respondents' document production is "incomplete" is meritless. Respondents' document production was substantially complete on July 14, 2023, at which time Respondents had produced 10,589 documents, totaling over 60,000 pages, the vast majority of which were emails, and all of which were produced as text searchable images to facilitate ease of review. The Motion erroneously asserts that "on August 7, 2023, Respondents made an additional production (totaling over 5,330 documents; more than 26,000 pages)." (Motion at 2.) This is incorrect. The production to which Complainant refers was, in fact, made on **July 14**, 2023. Indeed, as Complainant notes in the Motion, Respondents have produced nearly twice as many documents as Complainant. Moreover, the "batch" of documents Respondents produced on Friday, October 6 included precisely *two* documents (totaling a mere 7 pages), one of which was in the possession of Complainant (an email sent by Complainant's employee to one of the Respondent's employees), and should actually have been produced by Complainant to Respondents (but was not).² Respondents' counsel confirmed to Complainant's counsel via email on Friday, October 6, 2023, *before* Complainant filed the Motion, that Respondents had produced all responsive documents. Yet, without any support, Complainant's Motion misrepresents Respondents' document production as "incomplete."

² The other document produced was not responsive to any of the categories of documents raised by Complainant, but Respondents just recently located it and believed it was responsive to other request, so Respondents produced it in good faith.

In short, Complainant has had access to Respondents' voluminous and complete document production for three months—since July 14. Complainant attempts to manufacture support for its requested extension by representing to the Presiding Officer that Respondents' document production is “incomplete” based on deposition testimony given by Respondents on September 28 and 29, which, according to Complainant, “revealed additional documents that Complainant requested from Respondents, and which have not yet been produced.” (Motion at 3.) The “additional” documents which Complainant says “have not yet been produced” *have* been produced, again, since July 14, 2023. In an email to counsel on October 10, 2023, at Complainant's counsel's request, counsel for Respondents specifically identified by Bates number which documents were responsive to Complainant's “additional” requests.

If any party's document production is “incomplete,” it is Complainant's. Contrary to Respondents' production, which included voluminous responsive internal emails (*i.e.*, emails of which Complainant was not already in possession), Complainant's document production included very few internal emails responsive to Respondents' Requests for Production of Documents. During a meeting among counsel for all parties on July 26, 2023, counsel for TPG admitted he was “surprised” at the small volume of internal emails produced by Complainant and advised that he would follow up with Complainant about this issue. Counsel for Respondents have not heard from Complainant further on this issue since that meeting. To date, Respondents have elected not to press the issue because they believe they can adequately support their defenses with the documents that have been produced, but it bears emphasizing, in light of Complainant's inaccurate characterization of Respondents' document production, that Complainant's—not Respondents'—document production is “incomplete.” Moreover, during prior meet and confers with Complainant's counsel, Complainant never raised any concerns that Respondents' document

production was “incomplete,” aside from requesting a few specific documents which Complainant was unable to access.

B. Despite having Three Months to Prepare an Expert Report, Complainant Failed to Comply with the Expert Disclosure Deadline in the Revised Scheduling Order.

Complainant maintains that an extension is warranted due to unidentified “complications” and “time constraints” and otherwise asserts that it has not “cavalierly disregarded” the Revised Scheduling Order, despite the fact that, under the Revised Scheduling Order, its disclosure of expert reports was due on October 6, 2023. Complainant did not submit an expert report on or before that date. Instead, it filed the Motion, plainly disregarding the Presiding Officer’s Revised Scheduling Order, to which the parties previously agreed.³ Complainant cites its independent auditor’s need for more time “to complete the analysis” of the containers at issue in this dispute. (Motion at 3.) But Complainant notes that it engaged its independent auditor on August 1, 2023, so the auditor has had *over two months* to analyze the issues in this litigation. Complainant has offered no basis (let alone a persuasive basis) as to why its unidentified expert requires yet more time to produce its tardy report. Again, the “additional documents that Respondents need to produce,” according to Complainant, *were* produced three months ago. Accordingly, Complainant’s argument does not support Complainant’s contention that its auditor “needs additional time.” (Motion at 3.)

The current circumstances are unlike the circumstances that existed when the parties jointly moved for a revised scheduling order on August 2, 2023. The basis for that motion was that the parties and counsel could not find dates for depositions within the timeframe required by the then-operative scheduling order, and the parties were in the process of reviewing voluminous document

³ The fact that Complainant “waited until the deadline to seek an extension certainly does not aid [its] cause.” *Shemendera v. First Niagara Bank N.A.*, 288 F.R.D. 251, 253, n. 3 (W.D.N.Y. 2012).

productions. Now, more than two months later, Complainant cites some of the same reasons for its requested extension, including the need for “analysis of tens of thousands of pages of documents” (Motion at 3), and the “volume of documents already produced” (Motion at 4). Complainant has had an additional two months since the Revised Scheduling Order was issued, and yet it still asserts that it has had inadequate time to prepare and review documents. Simply put, the Presiding Officer should not reward Complainant’s lack of diligence by granting the requested extension. *See AMW Material Testing, Inc. v. Town of Babylon*, 215 F.R.D. 67, 72 (E.D.N.Y. 2003) (“To show good cause, particular and specific facts must be established rather than conclusory assertions.”); *see also Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 609 (9th Cir. 1992) (“Good cause” exists when a deadline “...cannot reasonably be met despite the diligence of the party seeking the extension.”); *see also Nnabugwu Chinedu Andrew et al. v. Marine Transport Logistics, Inc., et al.*, Docket No. 20-12, 2021 WL 111587, at *1 (Jan. 7, 2021) (holding that Complainant’s requested extension “does not establish good cause” where request was based on “voluminous document production”).

II. If Complainant is Allowed Additional Time to Belatedly Disclose an Expert Report, then Respondents are Entitled to a Commensurate Amount of Time to Disclose a Rebuttal Expert Report.

In any event, if the Presiding Officer does permit Complainant to belatedly produce expert reports, then, under the circumstances, Respondents should be granted a commensurate or greater amount of time to present their rebuttal expert reports. The proposed revised schedule set forth in the Motion is inconsistent with the proposed schedule that Complainant presented to Respondents counsel on October 3, 2023 and further prejudices Respondents. For example, in its original proposal to Respondents, Complainant proposed January 19, 2024 as the deadline for the disclosure of Respondents’ rebuttal expert reports, but the Motion proposes January 5, 2024.

Respondents would be prejudiced by Complainant's proposed schedule because they and any expert they retain would be required to identify and prepare rebuttal expert reports over the holiday period, as Complainant's expert reports would be due on December 8, 2023. Respondents would propose at least an additional two weeks beyond January 5, 2024 for its deadline to produce any rebuttal expert reports.

Notwithstanding Respondents' opposition to the scheduled Complainant proposes in the Motion, Respondents are amenable to a reasonable and modest extension of approximately two weeks, but Complainant's requested extension of eight weeks is excessive and without good cause.

III. Conclusion.

Complainant's Motion fails to demonstrate good cause for modifying the Revised Scheduling Order. Respondents' document production has been substantially complete for three months, and Complainant's independent auditor has had over two months to analyze the issues in this litigation. Respondents desire finality and a swift resolution of this case, not further delays. Complainant failed to meet its expert disclosure deadline in plain disregard for the Presiding Officer's Revised Scheduling Order. The Presiding Officer should not reward Complainant with substantial additional time under the circumstances. For all of the reasons set forth above, the Presiding Officer should deny the Motion.

Respectfully submitted,

**BENESCH, FRIEDLANDER,
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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 13th day of October, 2023, a true and correct copy of the foregoing was served via electronic mail on:

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/s/ Marc S. Blubaugh
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